

HOUSE BILL 1053

By McKenzie

AN ACT to amend Tennessee Code Annotated, Title 40,
Chapter 29, relative to voting rights.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-29-202, is amended by deleting subsection (c) and substituting:

(c)

(1) Notwithstanding subsection (a), a person is not eligible to apply for a voter registration card and have the right of suffrage restored unless the person is current in all child support obligations.

(2) Notwithstanding subdivision (c)(1), a person is eligible to apply for a voter registration card and have the right of suffrage provisionally restored if the person enters into a payment plan to become current in all unpaid child support obligations.

(3) If a person willfully fails to adhere to the terms of a payment plan entered into pursuant to subdivision (c)(2), then the court that provisionally restored the person's right of suffrage shall revoke the person's provisional right of suffrage. Prior to revoking a person's provisional right of suffrage, the court shall provide the person with court-appointed counsel and offer the person the opportunity to be heard and to submit proof of the person's financial inability to pay, which may include a signed affidavit of indigency.

SECTION 2. The secretary of state, in consultation with the department of human services and the administrative office of the courts, is authorized to promulgate rules to

effectuate the purposes of this act. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in Tennessee Code Annotated, Title 4, Chapter 5.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it, and applies to persons applying for a voter registration card on or after that date.